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Tentative Ruling

Re: **John Roe 927 D.W. v. County of Fresno**
Superior Court Case No. 22CECG03958

Hearing Date: June 17, 2026 (Dept. 403)

Motion: By Defendant County of Fresno for Terminating Sanctions
Against Plaintiff John Roe 1002 J.R.

Tentative Ruling:

To grant. County of Fresno shall submit to the Court, within ten (10) days of this order, a proposed order dismissing, with prejudice, this action as it relates to plaintiff John Roe 1002 J.R.

Explanation:

Noncompliance with compelled discovery justifies terminating sanctions. (See Code Civ. Proc., §§ 2023.010, subd. (d); 2023.030, subd. (d)(3).) This court is also guided by the principle that "[t]he sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks" (*Caryl Richards, Inc. v. Superior Court* (1961) 188 Cal.App.2d 300, 304.)

On June 17, 2025, defendant County of Fresno propounded on Plaintiff John Roe 1002 J.R., Special Interrogatories, Set Two; and Request for Production of Documents, Set Two. Because plaintiff failed to serve any response to the discovery, the County filed a motion to compel responses. On December 9, 2025, the court granted the motion and ordered plaintiff to serve responses to the discovery within 30 days, and ordered plaintiff to pay \$520 in sanctions. Plaintiff never served responses to the discovery, and has not made contact with the County's counsel. In light of this plaintiff's history of failure to comply with discovery obligations, failure to comply with the court's order, and failure to respond to this dispositive motion, it appears that plaintiff has abandoned the litigation and that no lesser sanction would promote compliance. Terminating sanctions are necessary and justified. The motion is therefore granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on June 16, 2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Jasbir Pannu v. Volkswagen Group of America, Inc.***
Superior Court Case No. 24CECG02928

Hearing Date: June 17, 2026 (Dept. 403)

Motions: By Defendants Volkswagen Group of America, Inc. and CJ's Road to Lemans Corp., dba Audi Fresno, to Compel Depositions of Plaintiff Jasbir Pannu and Plaintiff J&J Funding Inc.'s Person Most Knowledgeable

Tentative Ruling:

To grant. Plaintiff Jasbir Pannu and the person most knowledgeable of plaintiff J&J Funding, Inc., shall appear for depositions on a date, within 10 days from service of the order by the clerk, to be agreed upon by the parties. (Code Civ. Proc., § 2025.450.)

Explanation:

Where a party fails to appear at a properly noticed deposition, and no valid objection under section 2025.410 has been served, the party giving the notice may move for an order compelling the deponent's attendance and testimony. (Code Civ. Proc., § 2025.450, subd. (a).) Defendants' motions are supported by evidence of the subject deposition notices served on plaintiff Jasbir Pannu and plaintiff J&J Funding, Inc.'s Person Most Knowledgeable. Plaintiffs did not object to the deposition notices or oppose defendants' motions, despite proper service of each. Therefore, the motions are granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/16/26.
(Judge's initials) (Date)